

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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STACY ENGLISH,
Plaintiff (s)

SUMMONS

-against-

INDEX No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
P.O. MERITA HOXHA, SHD.# 11713, JOHN DOE #1 -5,
IN OFFICIAL AND INDIVIDUAL CAPACITY,

Defendants,

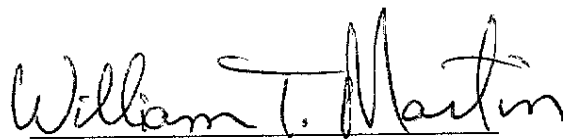
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To the above-named Defendant (s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Westchester, New York
August 6, 2024

Respectfully submitted,



William T. Martin & Associates
Attorney for Plaintiff STACY ENGLISH
108 Village Sq., Ste. 143
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
STACY ENGLISH,
Plaintiff (s)

-against-

COMPLAINT
INDEX No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
P.O. MERITA HOXHA, SHD.# 11713, JOHN DOE #1 -5,
IN OFFICIAL AND INDIVIDUAL CAPACITY,

JURY DEMAND

Defendants,
-----X

Plaintiff STACY ENGLISH, by and through his attorney, WILLIAM T. MARTIN, Esq.,

complaining of the defendants herein, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants’ violation of plaintiff’s rights as secured by the United States Constitution, and the laws of the State of New York.
2. Plaintiff STACY ENGLISH is an African- American male, resident and citizen of City of New York, State of New York and the United States of America.
3. Plaintiff is a United States citizen who was deprived of his constitutional and common law rights when defendant P.O. MERITA HOXHA, SHD.# 11713,NYPD POLICE OFFICERS JOHN DOE #1 -5, ARRESTED THE PLAINTIFF FOR NO LEGITIMATE REASON.
4. Plaintiff’s claim was the subject of a 50H hearing on December 2, 2021 and the claims have not been redressed and more than 90 days have elapsed since the 50H hearing.

PARTIES

5. Plaintiff, STACY ENGLISH (hereinafter “ ENGLISH”) was a resident of the City and State of New York when the cause of action accrued.
6. The City of New York, (hereinafter “CITY”) at all times relevant herein, operated and maintained a police system with law enforcement personnel within the city of New York.

7. At all times relevant herein, P.O. MERITA HOXHA, SHD.# 11713 (hereinafter “HOXHA”) was employed by the New York City Police Department and apropos to the averments in the complaint was acting within the scope of their employment.

8. At all times relevant herein, NYPD OFFICERS JOHN DOE # 1 – 5 were employed by the New York City Police Department and apropos to the averments in the complaint was acting within the scope of their employment.

JURISDICTION

9. The incidents complained about in the instant complaint all occurred within the confines of the CITY of New York, to wit, Bronx County.

STATEMENT OF FACTS

10. On or about March 4, 2020, at or about 12:10 a.m. , ENGLISH was lawfully in the vicinity of Franklin Ave and East 169 St. in the Bronx. At or about this time a male victim was forcibly robbed by a person who strong armed (snatched) the victim’s money, who may have been intoxicated, as he exited the bodega.

13. While it appeared that the victim may have been intoxicated, he nevertheless managed to complain to the police (or someone did on his behalf) who appeared on the scene and spoke to the victim who gave an account of what had occurred. Apparently the police arrested ENGLISH based upon information they had received from the victim.

14. At or about the time ENGLISH was lawfully in the area, where the victim was robbed. When approached by the police ENGLISH indicated to the defendant P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5, THAT HE WAS NOT THE PERSON THEY WERE LOOKING FOR, AND THAT HE HADN’T ROBBED ANYONE.

15. Further, ENGLISH pointed out to the police that the store had a surveillance system which probably had a view of the store area; and that if they reviewed the surveillance tape, they would clearly see that he was not the person who had robbed the victim. Instead of reviewing the tape, (which they could have) the defendant officers arrested ENGLISH and never reviewed the videotape at the scene.

16. Upon information and belief ENGLISH was taken to the 42d Pct., and a criminal court complaint was prepared by P.O. MERITA HOXHA, SHD.# 11713 (HEREINAFTER “HOXHA”), CHARGING ENGLISH WITH ROBBERY 3D DEGREE, CRIMINAL POSSESSION

STOLEN PROPERTY 5TH DEGREE, PETIT LARCENY, HARASSMENT, AND MENACING.

17. ENGLISH was arraigned on March 4, 2021, after going through Central booking. ENGLISH was thereafter required to obtain private counsel. ENGLISH's case was postponed numerous times, and after several appearances and delays the criminal case it was dismissed with prejudice on August 18, 2021, and the record sealed.

18. ENGLISH was only arrested because the police defendants refused, to investigate at the scene which would have revealed that the victim was mistaken, when he misidentified ENGLISH because ENGLISH bore no resemblance, to the so-called perpetrator. The acts of commission and omission by the defendant NYPD officers, resulted in the intentional infliction of emotional distress, anxiety, depression, and upsetment at the thought of being arrested, prosecuted and incarcerated for a crime he did not commit.

17. On or about August 18, 2021, approximately 18 months after his arrest the Bronx Criminal Court issued a Certificate of Disposition on Docket No.# CR-004813BX, which indicated that all the charges had been dismissed.

18. On or about August 19, 2021, ENGLISH filed a notice of claim against the defendants. ENGLISH's claim was the subject of a 50H hearing on December 2, 2021 and the claims have not been redressed and more than 90 days have elapsed since the 50H hearing.

FIRST CAUSE OF ACTION

MALICIOUS PROSECUTION

19. Plaintiff ENGLISH repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1 " through "18" with the same force and effect as if more fully set forth at length herein.

20. That the individual defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5 brought charges against ENGLISH that were false, which they knew or should have to be false through the exercise of due diligence, and a thorough investigation consistent with their duties.

21. That ENGLISH's prosecution and incarceration on these false allegations, were the direct result of the actions of the individual defendants; which they knew or should have known were false; based on the intoxicated state of the victim and their failure to review the store video.

22. That the charges and prosecution of ENGLISH was reckless, wanton, and malicious without any regard to the truth of the allegations, and/or the defendants' conduct was in clear derogation of the ENGLISH's rights.

23. The defendant police officers knew that their charges were false, and that they did not care that they were false because they refused to view the available video which corroborated the fact that ENGLISH was not the perpetrator.

24. That by reason of the forgoing, plaintiff ENGLISH suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

SECOND CAUSE OF ACTION

INFLICTION OF EMOTIONAL DISTRESS

25. Plaintiff ENGLISH repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1 " through "24" with the same force and effect as if more fully set forth at length herein.

26. That the defendants knew or should have known that they were filing false charges which were designed to inflict severe emotional distress and psychological damages to the plaintiff who was aware of his innocence.

27. That the acts of the defendants caused emotional damage and suffering, anxiety, nervousness, insomnia, and public humiliation.

28. That the defendants knew or should have that their actions were likely to cause upsetment, depression, and countless hours of anguish resulting from false arrest which would likely cause emotional damage and injury to the plaintiff.

29. That ENGLISH was mistreated, humiliated and his report of the incident was disregarded, for no apparent reason, and he was arrested on allegations which were easily refutable.

30. The arrest on these trumped charges: resulted in mental anguish, incarceration for 24 hrs. (at least) and prosecution which signaled an arduous emotional journey from the night of the

arrest until the charges were dismissed by the Bronx County DA.

31. That by reason of the forgoing, plaintiff ENGLISH suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

32. Plaintiff ENGLISH repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1 " through "31" with the same force and effect as if more fully set forth at length herein.

33. That the defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5, CITY and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5 who were unfit for the performance of police duties on March 4, 2020, who also prepared and filed false accusatory documents to cover their illegal conduct at the above-mentioned location.

34. The failure of the defendant CITY to hire, retain, train, supervise, discipline, discharge or in any other way adequately control the behavior of defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5 in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of N.Y.P.D is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of guidance and direction which prudent and reasonable individuals would display in employing persons to work for the N.Y.P.D.

35. Further defendant CITY countenances, condones, ratifies the continued employment of the defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5 even though they are/were made aware of the ultra-various acts of said defendant police officers (dismissal of charges) and such forbearance, without consequences (failure to investigate), fosters an atmosphere of lawlessness and implicit acceptance of falsifying accounts of criminality against the citizenry with impunity.

36. Such conduct has flourished and allowed to the exist and has created a culture of

lawlessness that is carried out willfully, wantonly, maliciously and with reckless disregard for the rights of minorities in general and ENGLISH's constitutional rights, specifically.

37. That by reason of the forgoing, plaintiff suffered economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

FOURTH CAUSE OF ACTION

CITY'S VIOLATION OF FOURTH AMENDMENT RIGHTS

38. Plaintiff ENGLISH repeats, reiterates and re-allege each and every allegation contained in paragraphs marked "1 " through "37" with the same force and effect as if more fully set forth at length herein.

39. That as an employer of the defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5 at the times of their intentional conduct, as set forth herein, the defendant CITY is liable to the plaintiff ENGLISH under the laws of the defendant CITY and State of New York, for allowing said individual defendants to, while under color of law, deny the plaintiff due process and equal protection of the law, while active members of the NYPD, who arbitrarily and capriciously disregarded the allegations of a plaintiff/victim and failed to properly and thoroughly investigate the plaintiffs allegations against his assailants.

40. Moreover, that as a direct and proximate cause/result of the aforesaid acts and omissions by the defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5; the plaintiff ENGLISH has been made to suffer general, pecuniary and compensatory damages.

41. That the CITY was informed by the Bronx County DA that the false charges were dismissed, and the CITY continues to retain the individuals in their employ and by reason of the forgoing, plaintiff ENGLISH suffered serious economical and emotional injuries all to his damage in the sum of One Million Dollars (\$ 1 000,000.00) each.

WHEREFORE, Plaintiff ENGLISH request judgment against the individual defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5, and defendant CITY, as follows:

1. As against the individual defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5, JOINTLY AND SEVERALLY General and Compensatory damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action herein,

2. As against the individual Defendants the defendants the defendants the defendants the defendants P.O. MERITA HOXHA, SHD.# 11713, NYPD POLICE OFFICERS JOHN DOE #1 -5 , JOINTLY AND SEVERALLY punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action herein, and;

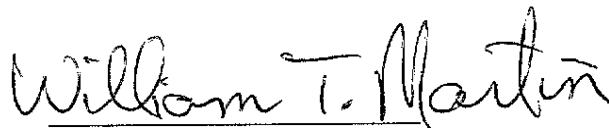
3. As against Defendant CITY OF NEW YORK, General and Compensatory damages in the sum. Of TWO MILLION DOLLARS (\$2,000,000.00) on the Sixth Cause of action asserted against it, and

4. Cost of this action,

5. And such other and further relief as may deem to be just and proper.

Dated: Westchester. New York

August 6, 2024



William T. Martin, Esq.
108 Village sq., Ste. 143
Somers, N.Y. 10589
Ofc. - (914) 960-3288
Fax - (718) 504-3783

VERIFICATION

STATE OF NEW YORK :

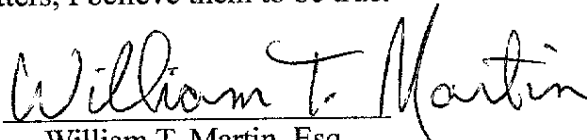
: ss.:

COUNTY OF WESTCHESTER :

I, William T. Martin, Esq. being an attorney do hereby affirm and state under the penalties of perjury that:

I am verifying the contents of the instant Complaint since my client does not reside in the county where I maintain my offices.

I have read the foregoing complaint and know the contents to be true. The averments therein are true to the best of my knowledge, except as to the matters therein stated to be alleged on information and belief and as to those matters, I believe them to be true.


William T. Martin, Esq.